

2022 M L D 170

[Lahore]

Before Jawad Hassan, J

MUHAMMAD ASHRAF---Petitioner

Versus

ADDITIONAL DISTRICT JUDGE and others---Respondents

Writ Petition No.74044 of 2019, heard on 7th September, 2021.

(a) Muslim Family Laws Ordinance (VIII of 1961)---

---S.7---Talaq (divorce)---Non-issuance of talaq certificate---Effect---Petitioner (ex-husband of deceased) assailed the dismissal of his application for revocation of succession certificate issued in favour of the sister of deceased---Factum of passing a decree for dissolution of marriage and the date of death of the deceased was not disputed by the parties---Stance of petitioner was that the deceased had been living with him as his wedded wife till her death as reconciliation was made between them after fifteen days of passing of the decree, which did not have legal effect because no notice in terms of S.7(1) of the Muslim Family Laws Ordinance, 1961, was sent to the Chairman Union Council concerned by the Court---Validity---Section 7 of the Muslim Family Laws Ordinance, 1961, was inserted to provide a procedure to the spouses to give another thought about their decision---Law-framer had the intention to make a flow to realize the consequences they would face after divorce but it did not mean that the Council established through such promulgation was empowered to examine the scope/validity of talaq---Significance was only to streamline the completion of process of divorce and non-following the provisions of S.7 did not affect the validity of divorce---Constitutional petition was dismissed.

Mst. Sadia Malik v. Chairman Arbitration Council and another 2017 CLC Note 166 rel.

(b) Constitution of Pakistan---

---Art.199---Constitutional jurisdiction---Scope---High Court ordinarily is not inclined to interfere with the findings of fact recorded by the courts below, particularly when they are not shown to be contrary to record or arbitrary or whimsical.

Tariq Shakoor for Petitioner.

Muhammad Naeem Qadir for Respondent No.5.

Date of hearing: 7th September, 2021.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging judgment dated 01.08.2019 passed by the Additional District Judge, Faisalabad whereby appeal filed by the Petitioner against the order dated 02.11.2018 passed by Senior Civil Judge (Guardian), Faisalabad was dismissed.

2. Facts of the case are that a succession certificate was issued in favour of the Respondent No.5 being the sister of deceased Mst. Zaib un Nisa on 08.11.2017. A petition under Section 383-B of the Succession Act, 1925 (the "Act") was filed by the Petitioner for revocation of aforesaid succession certificate. The said petition was dismissed by the Senior Civil Judge (Guardian), Faisalabad after getting replies of the parties vide order dated 02.11.2018. The Petitioner assailed the said order through appeal before the Additional District Judge, Faisalabad which met with the same fate. Hence this petition.

3. Learned counsel for the Petitioner inter alia contends that impugned order and judgment are illegal and unlawful and are the result of misreading and non-reading of material available on record; that the Courts below have failed to appreciate the right of inheritance accrued to the Petitioner being legal heir of the deceased; that the Courts below have wrongly relied on decree for dissolution of marriage dated 02.06.2009 whereas the Petitioner had reconciled with the deceased after fifteen days of passing aforesaid decree and the deceased remained as wedded wife of the Petitioner till her death; that no notice in terms of Section 7(1) read with Section 8 of the Muslim Family Laws Ordinance, 1961 (the "Ordinance") was ever issued to the Chairman Union Council concerned thus decree of khula has not been effected.

4. On the other hand, learned counsel for the Respondent No.5 supported the impugned order and judgment and stated that the same have been passed after taking into consideration all aspects of the matter and as such do not suffer from any error or material irregularity.

5. I have heard the arguments and perused the available record.

6. The factum of passing a decree for dissolution of marriage dated 02.06.2009 (the "decree") and the date of death of the deceased i.e. 11.05.2017 is not disputed by the parties. The stance of the Petitioner is that the deceased has been living with him as his wedded wife till her death as reconciliation was made between them after fifteen days of passing of the decree which is of having no legal effect because no notice in terms of Section 7(1) of the Ordinance was sent to the Chairman Union Council concerned by the Court. It is pertinent to highlight that Section 7 of the Ordinance was inserted to provide a procedure to the spouses to give another thought about their decision. The only connotation appeared from bare reading of said Section transpires that the law-framer had the intention to make a flow to realize the consequences they will face after divorce but it does not mean that the Council established through this promulgation has been empowered to examine the scope/validity of Talaq. Its significance is only to streamline the completion of process of divorce and even on account of non-following the provisions of section 7 will not affect the validity of divorce. Reliance is placed on "Mst. Sadia Malik v. Chairman Arbitration Council and another" (2017 CLC Note 166) wherein the Court observed as under:

"Any deficiency in completion or following of process provided under section 7 of Muslim Family Laws Ordinance, 1961 will not invalidate the consequence of pronouncement of Talaq nor it will enlarge the time of its effectiveness. For this reason the legislature itself being conscious of the norms of Islamic Law intentionally provided the punishment for non-following the procedure but has not declared in any clause of section 7 the effect of Talaq invalid. Therefore, it could safely be interpreted that any deficiency in following the provisions would not annul the effect of Talaq"

7. Another ground agitated by the Petitioner is that he has been deprived of from the inheritance share of estate of deceased Mst. Zaib un Nisa and that he had reconciled with the deceased after fifteen days of passing of the decree but these facts have not been considered by the courts below. The said ground of the Petitioner is not believable and is illogical because Mst. Zaib un Nisa died on 11.05.2017 and the Respondent No.5 filed application for grant of succession certificate on 13.09.2017 which was granted in her favour vide order dated 08.11.2017 while the Petitioner filed application for grant of succession certificate on 23.11.2017 which was decided on 17.01.2018, operation of which was suspended upon filing application by the Respondents under Section 12(2), C.P.C. From above, if the deceased was living with the Petitioner then what prompted him to get succession certificate after the lapse of more than five months. It is also interesting and surprising to note that the marriage of the Petitioner with the deceased was solemnized on 28.12.1997 while the Petitioner got registered the computerized marriage certificate on 09.10.2018 after the death of deceased which was issued just within four days on 13.08.2018 while the death certificate was applied by him on 03.06.2017 which was issued on 13.11.2017 i.e. more than five months. It seems that the Petitioner has done the whole exercise just to grab the benefits arising out of death of deceased. His conduct can also be seen from the observation made by learned Additional District Judge in paragraph No.11 of the impugned judgment that he himself moved applications dated 04.10.2012 to the Chief Minister Punjab and Chairman TEVTA for initiation of legal proceedings against the deceased for misusing forged medical certificates and surprisingly, he has not mentioned therein that the deceased was his wedded wife. Meaning thereby, he was not living with the deceased in presence of the decree which remained intact till death of deceased and has never been challenged by the Petitioner before any competent Court of law.

8. This Court is also not ordinarily inclined to interfere with the findings of fact recorded by the learned Courts below, particularly when they are not shown to be contrary to record or arbitrary or whimsical. In the instant case, apart from the bald assertions, no specific instance was brought to the notice of the Court that might be regarded as a case of misreading or non-reading of material evidence, having direct and decisive bearing on the issues. Both the Courts below exercised the jurisdiction vested in them, without violating any principles governing the assessment and appraisal of evidence and passed well-reasoned order/judgment after taking into consideration every aspect of the case.

9. For what has been stated above, this petition holds no merit, which is accordingly dismissed.

SA/M-189/L Petition dismissed.